

3.

CASE #	CASE NAME	HEARING NAME
CVRI2404367	KNIGHT VS FCA US, LLC	MOTION TO TAX COSTS

Tentative Ruling: Denied.

The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Plaintiff offers no evidence in support of the contention that Defendant’s costs are unreasonable, other than to point out that Defendant has provided no invoices receipts, or documentation of any kind, or sworn attestation to support the charges.

Code of Civil Procedure section 1032 establishes the general rule for awarding costs in civil action that “[e]xcept as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032(b).) Here, it is undisputed that Defendant is the prevailing party for purposes of awarding costs under section 1032. Courts have recognized that this section does not come in conflict with the cost-shifting statute under Civil Code section 1794 of the Song-Beverly Act, which entitles the prevailing buyer the right to recover “costs and expenses, including attorney’s fees” while remaining silent regarding the right of prevailing defendant to recover its costs and fees. (*Duale v. Mercedes-Benz USA, LLC* (2007) 148 Cal.App.4th 718, 727.) Therefore, in a buyer’s action brought under the Song-Beverly Act, a prevailing defendant manufacturer is still entitled to recover its costs pursuant to Code of Civil Procedure section 1032.

Here, Plaintiff has brought a timely motion to strike or tax costs. A party contesting the cost memorandum must serve and file the notice of motion to strike or tax costs “15 days after service of the cost memorandum.” (Cal. Rules of Court, rule 3.1700(b)(1).) If the cost memorandum was served electronically, as is the case here, the 15-day period is extended by two court days. (*Ibid.*; Code Civ. Proc., §1010.6(a)(4).) Here, the Memorandum of Costs was served on February 27, 2026, via electronic service. Hence, Plaintiff has timely brought a motion to strike or, alternatively, to tax the Memorandum of Costs on March 16, 2026.

Nevertheless, the motion must be denied since Plaintiff makes no valid challenge to Defendant’s Memorandum of Costs or individual cost items. The initial verification on the memorandum of costs is sufficient to establish the reasonable necessity of the costs being claimed. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) Unless objection is made as to the entire memorandum, the motion to tax cost must refer to each item objected to by the same number and order as the corresponding cost item claimed on the memorandum and state why the item is objectionable. (Cal. Rules of Court, rule 3.1700(b)(2).) Here, as Defendant points out, Plaintiff merely argues that the motion must be granted

because Defendant provides no invoices, receipts, or documentation of any kind, or sworn attestation to support these charges. Merely alleging in the motion that the costs are neither necessary nor reasonable without a supporting declaration does not meet the burden of showing that the costs are unnecessary. (*See County of Kern v. Ginn* (1983) 146 Cal.App.3d 1107, 1113-1114.) Only after the items are properly objected to, does the burden of proof shift to the party claiming them as costs. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th at 774.) Plaintiff has not met his initial burden to shift the burden onto Defendant.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2500073	MONARCH RAW PET FOOD VS DAVIS	MOTION FOR TERMINATING SANCTIONS

Tentative Ruling: Grant motion for terminating sanctions. Answer of Cross-Defendant Benjamin Keith Davis is stricken. Additional Sanctions \$2400 awarded to Proponent of motion, payable within 10 days. No opposition.